

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #04	CCRB Case #: 201709261	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 11/02/2017 12:00 AM	Location of Incident: Frederick Douglass Boulevard between West 141st and West 142nd Street	18 Mo. SOL 5/2/2019	Precinct: 32
Date/Time CV Reported Thu, 11/02/2017 12:45 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/08/2017 11:02 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Edgar Rusi	06914	961214	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Trevor Beirne	23990	960222	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Edgar Rusi	Abuse: Police Officer Edgar Rusi stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated

Case Summary

On November 2, 2017, § 87(2)(b) filed this complaint with IAB via telephone. The complaint was received at the CCRB on November 8, 2017.

On November 2, 2017, between 12 a.m. and 1 a.m., in the vicinity of Frederick Douglass Boulevard between West 141st Street and West 142nd Street in Manhattan, Police Officer Edgar Rusi of the 32nd Precinct stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants (**Allegation A: Abuse of Authority, unsubstantiated**).

There is no video footage of this incident.

This incident did not result in an arrest or a summons.

Findings and Recommendations

Allegation (A) Police Officer Edgar Rusi stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Rusi stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g).

On November 2, 2017, between 12 a.m. and 1 a.m., § 87(2)(b) (BR 05) was driving northbound on Frederick Douglas Boulevard in Manhattan on his way home from work. § 87(2)(b) was in his gold 2005 Chrysler Town and Country with § 87(2)(b) § 87(2)(b) vehicle was in good working order.

As § 87(2)(b) was traveling north on Frederick Douglass Boulevard, he noticed a marked police vehicle about five to six feet behind him. The lights and sirens of the vehicle were not on at this time. § 87(2)(b) signaled and moved to the right side of the street in order to get out of the police vehicle's way. Immediately after, the lights of the police vehicle were activated and § 87(2)(b) pulled over between West 141st Street and West 142nd Street.

PO Rusi approached the driver's side of § 87(2)(b) vehicle while Police Officer Trevor Beirne, also of the 32nd Precinct, approached the passenger's side. PO Rusi asked for § 87(2)(b) license and registration. § 87(2)(b) said, "Officer, why are you pulling me over?" PO Rusi explained to § 87(2)(b) that one of the license plate lights was out. § 87(2)(b) asked PO Rusi if he could exit his car to look at the license plate and PO Rusi allowed § 87(2)(b) to do so. When § 87(2)(b) got to the back of his car, the license plate lights were on. § 87(2)(b) explained this to PO Rusi and asked, "Now what is your probable cause?"

§ 87(2)(b) got back inside his vehicle. PO Rusi then told § 87(2)(b) he was pulled over for failing to signal. § 87(2)(b) pointed out that his turn signal was still flashing and clicking on the dashboard. PO Rusi said, "Just give me your license," to which § 87(2)(b) responded, "Are you trying to check to see if I'm suspended?" PO Rusi continued to ask for § 87(2)(b) license or "anything with [his] name on it." § 87(2)(b) provided PO Rusi with his license.

PO Rusi and PO Beirne walked back to their police vehicle. Between five and ten minutes later, PO Rusi returned to § 87(2)(b) vehicle, gave § 87(2)(b) his license, and said, "Sorry. You can go," without issuing § 87(2)(b) a summons. PO Rusi and PO Beirne then quickly left in their vehicle.

§ 87(2)(b) (BR 06) was generally consistent with § 87(2)(b) though she had a more limited recollection of the incident.

According to PO Rusi (BR 07), at approximately 12:35 a.m., he and his partner, PO Beirne were patrolling the area of West 139th Street through West 144th Street between Lenox

Avenue and 8th Avenue, also known as Frederick Douglass Boulevard. PO Rusi was driving the vehicle and PO Beirne was in the passenger's seat.

As PO Rusi and PO Beirne were traveling northbound on 8th Avenue, PO Rusi noticed a minivan approximately two to three car lengths away with its license plate light off. PO Rusi decided to stop the van. PO Rusi was unaware if PO Beirne also noticed the defective license plate light. PO Rusi only pulled over the vehicle because of the defective license plate light.

When PO Rusi exited the vehicle, he went to the driver's side and PO Beirne went to the passenger's side of § 87(2)(b) vehicle. PO Rusi asked for § 87(2)(b) license and registration, which § 87(2)(b) refused to provide. § 87(2)(b) said, "Why am I being stopped?" PO Rusi informed § 87(2)(b) that he would explain why he stopped § 87(2)(b) once § 87(2)(b) provided his documentation. After two to three minutes, § 87(2)(b) provided his license, and PO Rusi explained that he pulled § 87(2)(b) over because a license plate light was out.

§ 87(2)(b) asked to exit the vehicle to look at his license plate, which PO Rusi allowed him to do. § 87(2)(b) told PO Rusi that his license plate light was working. Upon closer inspection, PO Rusi noticed that the license plate light was barely on and was flickering on and off. The Vehicle and Traffic Law (VTL) stipulates that license plate lights need to illuminate the license plate from 50 feet away. PO Rusi explained this to § 87(2)(b) and told § 87(2)(b) to go back inside of his vehicle.

PO Rusi and PO Beirne went back to their vehicle, and PO Rusi performed a computer check of § 87(2)(b) license, as is standard procedure. After performing the computer check, PO Rusi went back to § 87(2)(b) car to return § 87(2)(b) license. PO Rusi told § 87(2)(b) he was not going to issue § 87(2)(b) a summons, even though he could have. PO Rusi used his discretion in his choice to not issue § 87(2)(b) a summons for the defective license plate light.

PO Beirne (BR 08) was consistent with PO Rusi's account of the incident. PO Rusi told PO Beirne that he noticed the license plate light of § 87(2)(b) vehicle was out and that he was going to pull the vehicle over. PO Beirne did not notice the defective license plate light at this time, but noticed later when § 87(2)(b) had exited his vehicle to look at the light that the license plate light was in fact very dim, and not illuminating the license plate to the degree that it should. As the officer that initiated the traffic stop, PO Rusi decided not to issue § 87(2)(b) a summons. PO Beirne did not know why PO Rusi made this decision and the officers did not have any conversation regarding PO Rusi's decision.

If required to display a number plate on the rear, a white light shall illuminate the numerals on such plate to render the numerals legible for at least fifty feet from the rear. Vehicle and Traffic Law 375.2(4) (BR 09).

§ 87(2)(g)

As such, it is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been a party (BR 03-04).
- PO Edgar Rusi has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(g) [REDACTED]
- On March 2, 2018, a request was sent to the New York City Office of the Comptroller to determine if § 87(2)(b) [REDACTED] or § 87(2)(b) [REDACTED] has filed a Notice of Claim in regards to this complaint. As of the date of this report, the result of this request has not been received.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date